ADVANCED RESOURCE MANAGERS

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TERMS OF BUSINESS (WORK-SEEKERS)

These Terms of Business are between:

1. **Advanced Resource Managers Engineering Ltd** or **Advanced Resource Managers IT Ltd** (as relevant) of **Shore House, North Harbour Business Park, Compass Road, Portsmouth, Hampshire PO6 4PR** (**"Company" or "we"**); and

2. Individuals seeking to engage the Company's work-finding services (**"you" or "your"**)

Whereas

a) These Terms of Business are deemed to cover the supply of services by the Company; and

b) It is understood that the Company may act in its capacity as an Employment Agency (permanent recruitment services) and / or an Employment Business (temporary recruitment services) under the Conduct Regulations; and

1. DEFINITIONS

1.1. The following definitions apply to these Terms of Business:

Assignment means the period during which the Candidate is supplied to render services to the Client, either on a permanent or temporary basis;

Assignment Schedule means a document outlining the principal terms governing a temporary Assignment;

Candidate means the person Introduced by the Company to the Client for an Engagement which may be of a permanent or temporary nature, including any officer or employee of the Limited Company where the individual supplied is a Limited Company Contractor;

Client means the person, firm or corporate body together with any subsidiary or associated company as defined by the Companies Act 2006 and any customer of the Client requiring the services of the Candidate;

Conduct Regulations means the Conduct of Employment Agencies and Employment Businesses Regulations 2003 as may from time to time be amended;

Data Controller determines the purposes, conditions and means of processing Personal Data;

Data Processor is responsible for processing Personal Data on behalf of a Data Controller;

Data Protection Legislation means the Data Protection Act 2018 (as amended or re-enacted), the General Data Protection Regulation, the Regulation of Investigatory Powers Act 2000, the Telecommunications (Lawful Business Practice) (Interception of Communications) Regulations 2000 (SI 2000/2699), the Electronic Communications Data Protection Directive (2002/58/EC), the Privacy and Electronic Communications (EC Directive) Regulations 2003 (SI 2426/2003) and all applicable laws and regulations relating to the processing of personal data and privacy, including where applicable the guidance and codes of practice issued by the Information Commissioner or any other supervisory authority, and the equivalent of any of the foregoing in any relevant jurisdiction as amended from time to time;

Data Subject is a natural person (individual) whose Personal Data is processed by a Data Controller or Data Processor;

Engagement means the engagement, employment or use of the Candidate directly by the Client or any third party or through any other company on a permanent or temporary basis, whether under contract of service or for services; an agency, license, franchise or partnership agreement; directly or through a limited company of which the Candidate is an officer or an employee. "Engage" and "Engaged" shall be construed accordingly;

HMRC means Her Majesty's Revenue and Customs;

IANA means the Immigration Asylum and Nationality Act 2006 as may from time to time be amended;

Introduction means (1) the passing to the Client of a CV or other information which identifies the Candidate following the Client's instructions to the Company to search for a Candidate or (2) the interview (in person or by telephone) or Engagement of a Candidate by the Client or any third party who has obtained such information through the Client's intermediation following the passing to the Client by the Company of a

speculative CV or other information with identifies the Candidate. "Introduce" shall be construed accordingly;

IR35 means the HMRC intermediaries legislation that may impact your tax and national insurance if you are contracted to work through an intermediary or a Limited Company;

Job Boards means internet based services enabling you to actively search for suitable vacancies and enabling Clients to actively search for suitable Candidates;

Limited Company means a private company limited by shares or guarantee, or a public company limited by shares or guarantee and having a share capital, as defined in the Companies Act 2006 as may be amended from time to time, or the equivalent under overseas jurisdiction.

Limited Company Contractor means the Candidate, who may or may not have Opting-Out of the Conduct Regulations, whose services are supplied by the Company to the Client through a Limited Company which is contracted by the Company under a contract for services;

PAYE Contractor means a person Engaged by the Company on a contract for services basis and paid as an agency worker in accordance with s.44 of the Income Tax (Earnings and Pensions) Act 2003;

Personal Data means any information relating to a Data Subject who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;

Opting-Out means the legal act of declaring, by means of signing an Opt-Out notification, that the Conduct Regulations will not apply to Your Services;

Our Services means the Company's specialised skills, techniques and resources employed to find you suitable work, which may be of a Permanent or Temporary nature;

Recruitment Consultant means the person employed by the Company who will provide Our Services to you;

Registration means (i) your registration with the Company as a Candidate on the Company's database with a view to using Our Services;

Remuneration includes base salary or fees, guaranteed and / or anticipated bonus and commission earnings, allowances, inducement payments, the benefit of a company car and all other payments and taxable (and, where applicable, non-taxable) emoluments payable to or receivable by the Candidate for services rendered to or on behalf of the Client;

Special Categories of Personal Data means any Personal Data which includes details about your race or ethnicity, religious or philosophical beliefs, sex life, sexual orientation, political opinions, trade union membership, information about your health and genetic and biometric data;

Your Details means the Personal Data (including, but not limited to, your CV) you will be requested to provide to the Company, any further details that may be required either by law or upon a Client's request, or such other details as you may have made publicly available through Job Boards or a professional networking site;

Your Services means the knowledge, skills, experience and techniques you will use to perform your Assignment for the Client;

2. GENERAL

2.1. Unless the context requires otherwise, references to the singular include the plural and reference to the masculine include the feminine and vice versa.

2.2. The headings contained in these Terms of Business are for convenience only and do not affect their interpretation.

2.3. These Terms of Business contain the whole agreement between the parties and supersede and replace any prior written or oral agreements, representations or understandings between the parties, and in particular shall supersede any terms set out in any invoice, timesheet, or other communication issued by you to the Company.

3. LAW

3.1. These Terms of Business are governed by the laws of England and Wales and are subject to the exclusive jurisdiction of the courts of England and Wales.

4. THE CONTRACT

4.1. These Terms of Business are deemed to be accepted by virtue of your Registration and / or by virtue of your agreement for the Company to forward your CV to a Client. The Company will not forward your CV to any Client without your permission.

4.2. The Company's work-finding services to you are provided free of charge.

4.3. These Terms of Business will not at any time be considered to constitute a contract of employment between you and the Company or any of its Clients.

5. LIABILITY

5.1. The Company shall not be liable under any circumstances for any loss, expense, damage, delay, costs or compensation (whether direct, indirect or consequential) which may be suffered or incurred by you arising from or in any way connected with the Company seeking suitable work for you or from the Company's Introduction of you to or Engagement by the Client or from the failure of the Company to find you suitable work. For the avoidance of doubt, the Company does not exclude liability for death or personal injury arising from its own negligence.

6. THE COMPANY'S OBLIGATIONS

6.1. The Company agrees to do the following:

6.2. At Registration stage:

6.2.1. Give you clear information about Our Services and what terms & conditions apply to Our Services;

6.2.2. Register Your Details and provide you with our fair processing information in relation to the use of your Personal Data and any Special Categories of Personal Data in accordance with the Data Protection Legislation;

6.2.3. Offer you the opportunity to receive marketing communications from us and obtain your consent to do so.

6.3. At Search stage:

6.3.1. Match your requirements with vacancies on our database;

6.3.2. Provide you with details regarding the position we propose to put you forward for;

6.3.3. Confirm your interest in and suitability for a vacancy before passing Your Details to the relevant Client.

6.4. At Introduction stage:

6.4.1. Pass Your details to relevant Client(s);

6.4.2. Arrange for you to attend an interview;

6.4.3. Inform you of the outcome of your interview.

6.5. At Offer stage:

6.5.1. Confirm the Client's offer to you;

6.5.2. Clarify any questions you might have;

6.5.3. Obtain your acceptance of that offer;

6.5.4. If your Engagement requires you to gain security clearance or undertake a criminal background check, and / or financial credit check, we will conduct these checks only where we have obtained your prior written explicit consent. Please note that if you fail to undertake these checks and / or the result of the checks renders you unsuitable for the Assignment, it may result in the withdrawal of the Client's offer.

6.6. At Placement stage:

6.6.1. If your Engagement is of a temporary nature, we will send you your contract and any other relevant documentation that you will need for the Assignment;

6.6.2. If your Engagement is for permanent employment, the Client will send you your contract of employment and any other relevant documentation.

7. YOUR OBLIGATIONS

7.1. You agree to do the following:

7.2. At Registration stage:

7.2.1. Provide the Company with Your Details and ensure that they are complete and accurate as and when requested by your

Recruitment Consultant;

7.2.2. Provide the Company with proof of your eligibility to work in the UK (see also clause 8 below);

7.2.3. Provide the Company with names and contact details of at least 2 professional referees or as otherwise requested by your Recruitment Consultant. You may be required at the offer stage to provide additional references in accordance with the relevant Client's requirements;

7.2.4. Inform the Company of the type of work you are looking for;

7.2.5. Provide the Company with copies of any qualifications relevant to the type of work you are looking for.

7.3. At Search stage:

7.3.1. Give the Company permission to pass your Details to those Clients whose vacancies you are interested in;

7.3.2. Provide the Company with any additional documentation the Client may require in order for you to be considered for the vacancy.

7.4. At Introduction stage:

7.4.1. Attend any interviews your Recruitment Consultant may, with your agreement, arrange for you.

7.5. At Offer stage:

7.5.1. If your preferred type of work is of a temporary nature, inform us whether or not you will be providing your Services as a Limited Company Contractor;

7.5.2. If applicable, provide us with a valid Opt-Out notification;

7.5.3. If applicable, complete and return any Client-specific documentation.

7.6. At Placement stage:

7.6.1. Commence Your Services on the date and time agreed.

8. ELIGIBILITY TO WORK IN THE UK

8.1. The Company cannot arrange for your Employment by or Engagement to a Client unless you have provided proof of your eligibility to work in the UK as required under the IANA.

8.2. The preferred documents that prove your eligibility to work in the UK are:

8.2.1. A valid British, EAA or Swiss passport or National Identity card;

8.2.2. A combination of (i) full birth certificate issued in the UK, Channel Islands or Isle of Man showing names of both parents, **AND** (ii) an official document showing your name and National Insurance number (such as your National Insurance card, a P45 / P60 or a letter from a Government agency);

8.2.3. A valid non-EEA passport endorsed with valid indefinite leave to remain in the UK plus, if applicable, a current work permit.

8.3. Where the document presented is a passport, the following pages should be presented:

8.3.1. The cover page, your photo page and all pages containing personal details.

8.4. Where the documents presented are a non-EEA passport endorsed with valid indefinite leave to remain in the UK, all previous UK endorsements, if applicable, should be presented as well.

8.5. The Company is obliged to establish eligibility to work in the UK for all its work-seekers, regardless of nationality and including those holding British nationality.

9. ASSIGNMENTS

9.1. The Company will seek to match your requirements with vacancies on its own database. The Company will match your requirements with both permanent and temporary vacancies unless you indicate otherwise. The Company will identify possible vacancies in accordance with your preferred type of work as you will have indicated upon registration or as a result of your discussions with your Recruitment Consultant, and will confirm the precise type of work in the relevant Assignment Schedule.

9.2. If we offer to Engage you (or your Limited Company) for a temporary Assignment in our capacity as an employment business, you (or, as appropriate, your Limited Company) will be

Engaged under a contract for services. If we Introduce and place you for a position direct with a Client on a permanent basis, you will not be Engaged by the Company and your contract will be with the Client, details of which will be confirmed to you at offer stage.

9.3. Notice periods may vary from Assignment to Assignment depending on duration, type of work and Client requirements.

9.4. In accordance with Regulation 15(d)(ii) of the Conduct Regulations, we guarantee that the minimum rate of pay you can expect to receive shall be at least equal to the national minimum wage or living wage as applicable at the time of the Assignment. The actual rate of pay we will be able to secure for you for each Assignment will vary, and will be confirmed in the relevant Assignment Schedule. We shall advise you of the rate applicable to each Assignment as soon as it is known to us, and to confirm it in the relevant Assignment Schedule.

9.5. If you are Engaged through a Limited Company, the terms and conditions that apply to your Assignment will specify the IR35 status of your Assignment. You are responsible for informing the Company of any changes during your Assignment that might affect your IR35 status. We will hold you personally responsible in the event that you provide inaccurate, incorrect or fraudulent information relating to your Assignment that results in a mis-classification of your IR35 status.

9.6. If you are Engaged as a PAYE Contractor, you can normally be paid in arrears on a weekly basis. If you are Engaged on a Limited Company Contractor basis, your Limited Company can be paid in arrears on a monthly basis. Should you accept an offer of Engagement, final details regarding payment intervals will be confirmed to you in the relevant Assignment Schedule.

9.7. If you are Engaged as a PAYE Contractor, you will be entitled to statutory minimum annual leave and holiday pay in accordance with the Working Time Regulations 1998 (as amended). Accordingly you will have an absence entitlement of 28 days per annum (to include public holidays and bank holidays) (based on a 5 day working week or pro-rated equivalent for part time workers). If you work as a Limited Company Contractor, your Limited Company will be responsible for any statutory annual leave and holiday pay entitlement that you may have. The Company will pay your Limited Company on a gross basis inclusive of any holiday pay which may be due to you from the Limited Company.

9.8. For the avoidance of doubt, you will not be considered to be an employee of either the Company or its Client while working on an Assignment.

10. <u>DATA PROTECTION</u>

10.1. We take our data protection obligations very seriously and always act in accordance with our obligations under the Data Protection Legislation.

10.2. To provide you with Our Services, we need to collect, use, process and store your Personal Data.

10.3. We will also need to share your Personal Data both internally as well as externally with other organisations such as Clients and third parties who provide us with support services.

10.4. To understand how we have obtained your Personal Data, the legal bases which we rely on to process your Personal Data, the types of Personal Data we process, why we process your Personal Data, and for how long we retain your Personal Data, please see our Transparency Notice and Data Processing Documents on the Serocor Group Privacy Centre at: http://www.serocor.com/Privacycentre.aspx.

10.5. Under the Data Protection Legislation, you have a number of rights with respect to your Personal Data and we have outlined these for you in our Transparency Notice (please use the above link to view our Transparency Notice). If you have any queries or intend to rely on any of your rights, please do let us know by emailing DPO@arm.co.uk.

10.6. If you no longer require Our Services and would like us to remove Your Details from our database, you can do so at any time by emailing unsubscribe@arm.co.uk. Please note that we are legally required to retain some Personal Data therefore we may not always be able to

remove all of Your Details from our database, however we will advise you of the reasons in such an event.

11. NEWS AND UPDATES

11.1. We will only send you marketing communications, such as news and updates about what we are doing and relevant industry information, if you have provided us with your consent and opted-in.

12. QUALITY MONITORING AND FEEDBACK

12.1. We value your feedback on Our Services. We always seek to improve and create a better user experience therefore we want to hear from you.

12.2. To help improve Our Services, we have partnered with Feefo, a feedback and review platform, which allows you to easily provide us with your feedback.

12.3. At the offer stage of Our Services, regardless of whether you were successful or not, Feefo will send you an email with a request for you to provide feedback.

12.4. You are under no obligation to provide us with any feedback so do not feel that you have to if you do not want to. However any feedback that you do will help us understand your experience working with us and will enable us to identify where changes need to be made.

13. ABOUT COMPLAINTS

13.1. We are ISO9001:2015 registered and we are obliged to inform our clients, customers and you about our complaints procedures. Complaints should be addressed to the Company's Quality Assurance Manager and sent to the Company's registered office or email complaints@arm.co.uk.